

**ANDHRA PRADESH REAL ESTATE APPELLATE TRIBUNAL
VIJAYAWADA**

NOTIFICATION

**ANDHRA PRADESH REAL ESTATE APPELLATE TRIBUNAL REGULATIONS,
2023.**

Whereas it is expedient to frame Regulations, the ANDHRA PRADESH Real Estate Appellate Tribunal in exercise of the powers conferred by Sub-section (2) of Section 53 of Real Estate (Regulation and Development) Act, 2016 and in addition to the Rule 44 of ANDHRA PRADESH Real Estate (Regulation and Development) Rules, 2017, enabling it to frame regulations of its own practice and procedure, hereby makes the following Regulations:

CHAPTER I

PRELIMINARY

1. Short title and Commencement:-

(a) These regulations shall be called the ANDHRA PRADESH Real Estate Appellate Tribunal Regulations, 2023.

(b) These Regulations shall come into force from the date of uploading as mentioned hereunder, on the website of ANDHRA PRADESH Real Estate Regulatory Authority.

(c) These regulations shall apply to all the proceedings pending in the Tribunal on the date of their commencement.

CHAPTER II

2. Definitions:-In these regulations, unless there is any thing repugnant to the subject or context:

(i) "Act" shall mean the Real Estate (Regulation and Development) Act, 2016 and "Rules" shall mean the ANDHRA PRADESH Real Estate (Regulation and Development) Rules, 2017, as amended from time to time;

(ii) "Address for Service" shall mean the address furnished by a party or his authorized agent, or his legal practitioner, chartered accountant, company secretary, cost accountant at which service of summons, notices or other processes may be effected;

(iii) "Appeal" means an appeal filed under sub-Section (1) of Section 44 of the Act read with Rule 44 of ANDHRA PRADESH Real Estate (Regulation and Development)(General) Rules, 2017 ;

(iv) "Appellant" means a person who has filed an appeal under sub-Section (1) of Section 44 of the Act read with Rule 44 of ANDHRA PRADESH Real Estate (Regulation and Development) Rules, 2017 ;

(v) "Authorised person" means a person authorized by the appellant to represent him before the Tribunal and which term includes the persons as explained in Section 56 of the Act;

(vi) "Chairperson" means the Chairperson of the ANDHRA PRADESH Real Estate Appellate Tribunal appointed under Section 46(2) of the Act.

(vii) "Member" means Member of the ANDHRA PRADESH Real Estate Appellate Tribunal appointed under Section 46(3) of the Act.

(viii) "Registrar" means the Registrar of the ANDHRA PRADESH Real Estate Appellate Tribunal and includes an officer of the Appellate Tribunal who is authorized by the Chairperson to function as Registrar;

(ix) "Registry" means the office of the ANDHRA PRADESH Real Estate Appellate Tribunal.

(x) "Code" means the Code of Civil Procedure, 1908, as amended from time to time;

(xi) Words and expressions not defined in these Regulations shall have the same meaning as assigned in the Act and the Rules.

CHAPTER III

AREA OF JURISDICTION

3. ANDHRA PRADESH Real Estate Appellate Tribunal Regulations, 2023 shall be applicable for the State of ANDHRA PRADESH;

CHAPTER IV

Presentation of Appeal and filing

4. (1) **Preparation of Pleadings and other papers** :Every appeal in Form -L which is prescribed under Rule 44(2) of the rules along with Memorandum of appeal and petitions, if any or counter statement from respondent presented to the Tribunal shall be in English and in case it is some other Indian language, it shall be accompanied by a copy translated in English and shall be fairly and legibly type-written, lithographed or printed in double spacing on one side of standard petition paper with an inner margin about 4 cm width on top and with a right margin on 2.5 cm and left margin of 5 cm, duly paginated, indexed and stitched together in paper book form and shall be presented in triplicate. Petition shall be filed separately.

(2) The names of parties shall be numbered consecutively in the cause title as found in the impugned order of the Authority or Adjudicating Officer and a separate line should be allotted to the name and description of each party. These numbers shall not be changed and in the event of the death of a party during the pendency of the appeal or petition or matter, his legal heirs or representative, as the case may be, if more than one shall be shown consecutively. Where fresh parties are brought in, they may be numbered consecutively in the particular category, in which they are brought in.

(3) **Initialing alteration**: Every interlineations, erasure or correction or deletion in any appeal or petition or application or document shall be initialed by the party or his authorized representative;

5. Documents to accompany Memorandum of Appeal

(1)Memorandum of Appeal in triplicate with adequate number of copies to be served for all respondents;

(2)Every appeal filed under Sub-section (1) of Section 44 of the Act and under Rule 44 of the rules, shall be accompanied by an

appeal fee of Rs.5,000 (five thousand rupees only) payable through online to be credited in the current account of the Appellate Tribunal as per G.O.Rt.No.642, Municipal Administration and Urban Development (H) Department, dated 12-09-2017;

(3) If the appeal is presented through an Advocate, necessary vakalath duly attested with affixture of necessary court fee stamp as well as Advocate Welfare Fund stamp on it shall be filed. The vakalath shall contain the address of the advocate with enrolment No., e-mail id, mobile no. etc. for proper communication;

(4) In the event of an appeal is filed by an authorized representative, such as Chartered Accountant, cost accountant, company secretary as provided in Section 56 of the Act, along with necessary attested true copy of Power of Attorney document or authorization letter authorizing them to represent the appellant before the Tribunal shall be filed along with appeal papers. The original of such authorization of Power of Attorney or letter of authorization, as the case may be, shall also be produced for verification at the time of filing for verification and return;

Provided that the Registrar may at any time call upon the party to produce such further materials as and when he is directed by the Tribunal in this regard;

(5) Along with the appeal papers, the appellant shall produce the original impugned order served to him or self attested copy along with the postal cover in the event of service of order by post so as to ascertain the date of service, as the date is mandatory requirement in so far as to determine the period of limitation;

(6) When the appeal is presented after the expiry of period of limitation as specified in the Act, Memorandum shall be accompanied by an application supported by an affidavit setting forth the facts on which appellant relies to satisfy the Tribunal that he / she has sufficient cause for not preferring the appeal within the period of limitation.

(7) The appellant shall also pay a sum of Rs.1,000/- towards postage and other service process, which shall be paid in the Bank as prescribed by the Tribunal and the challan shall be affixed on Process Memo.

(8) Copies of the documents relied upon by the appellant and referred to in the appeal shall be furnished;

(9) An index of documents shall also be furnished.

Explanation – The expression 'signature' or 'initial' includes impression.

(10) No new documents which have not been produced or relied on before the Authority shall be produced at the time of filing. However if any application is filed under Order 41 Rule 27 Civil Procedure Code of 1908, the same shall be considered by the Appellate Tribunal after giving opportunity to the other side.

(11) In pending matters, all applications shall be presented after serving copies thereof in advance on the opposite side or his / her authorized representative.

CHAPTER V

Examination & Registration

6. Endorsement and Scrutiny of appeal or petition:

(1) The person in charge of filing section shall immediately on receipt of appeal or petition affix the date seal of the Tribunal on all pages of grounds of appeal or petition and he shall also assign an SR number thereafter he shall cause it to be sent to the scrutiny officer;

(2) The scrutiny officer of the Registry shall, on receipt of the appeal paper from the filing section, scrutinize the same as expeditiously as possible but not beyond 4 working days from the date of receipt of the appeal;

Provided that for any reason the scrutiny is not completed within the above period, the same shall be immediately reported to the Registrar, who shall take prompt steps to complete the scrutiny within 7 days.

(3) On scrutiny, the appeal or petition found to be defective shall be returned for compliance and entered in the return register and such return intimation shall be uploaded in the website or informed through e-mail. It is for the party to take the returned appeal papers. If there is a failure to comply within 10 days, from the date of return; and the same shall be placed before the Registrar who may pass appropriate orders.

(4) Where the party fails to take any step for removal of the defect within the time fixed for the same, the Registrar for reasons to be recorded in writing, shall post it before the Appellate Tribunal for dismissal.

(5) Court fee stamps affixed in the vakalath or Letter of Authorisation shall be checked and after cancellation of the same with the seal of the Appellate Tribunal shall be accounted for in the Court Fee Register.

(6) For the purpose of reckoning the period of limitation, if the last day falls on a holiday, that day and succeeding holidays shall be excluded. It should be presented on the next working day succeeding the holidays from the last date of limitation.

7. Numbering: (1) Subject to the provisions of the Rule 44 of ANDHRA PRADESH Real Estate (Regulation & Development) Rules, 2017, the Registrar on examining the appeal, shall, if it is in order, direct for numbering it.

(2) Every appeal under Section 44 of the Act shall be numbered as Appeal No. and registered in the appropriate register maintained in this behalf.

(3) Miscellaneous Application filed along with the Appeal already instituted shall be numbered as M.A.No.;

(4) Review petition shall be numbered as R.P.No.

(5) The Tribunal will, whenever required, publish cause list monthly, weekly or daily.

CHAPTER VI

REGISTRAR

8. Powers of the Registrar:

(1) The official seal shall be kept in the custody of the Registrar.

(2) Subject to any general or specific direction by the Chairperson, the seal of the Appellate Tribunal shall not be affixed to any order, summons or other process, any copy of order for certification save under the authority in writing from the Registrar;

(3) The Registrar shall have the following powers and functions, namely:-

To register appeals, petitions and miscellaneous applications, to receive applications for amendment of appeal or the petition or application on

subsequent proceedings; applications for fresh summons or notices and regarding service thereof; applications for substituted service of summons or notices; application for seeking orders concerning admission and inspection of documents; to order grant of copies of documents to parties to the proceedings; to requisition records from the custody of any court or other authority; transmission of direction/ order to the civil court as directed by the Tribunal with prescribed certificate(s) for execution etc. and such other incidental/ matters as the Chairperson may direct from time to time.

(4) Delegation:-

The Chairperson may assign or delegate to any officer all or some of the functions required to be exercised by the Registrar under the Rules and Regulations.

CHAPTER VII

SERVICE OF PROCESS/APPEARANCE OF RESPONDENTS AND OBJECTIONS

9. Summons:

(1) Whenever summons or notice is ordered by post it may be served on other side by registered post or courier. It may also be served by e-mail to the other side, if e-mail id is furnished to the Tribunal. In the event of any application filed by the appellant or the respondent after entering upon by filing vakalath then all notices should be served in advance on the other side or to their counsel as the case may be and then file it in the Tribunal's registry.

(2) Steps for issue fresh notice: If any notice is returned unserved in the circumstances not specified in the Rules or Regulations, that the fact and the reasons thereof shall be notified immediately on the notice board of the Registry. The applicant or petitioner or his authorized representative shall within seven days from the date of such notification take steps to serve the effective notice afresh..

(3) Consequence of failure to take steps for issue of the fresh notice: Where a summon issued to the other side is returned as unserved, and the appellant or petitioner, as the case may be, fails to take necessary steps within a period as ordered by the Tribunal from the date of return of the notice on the respondent(s), the case shall be posted for dismissal for non-prosecution.

(4) **Entries regarding service of notice or process :** The bench clerk of the Tribunal shall record in the order sheet the details regarding completion of service of notice on the respondents, such as date of issue of notice, date of service, date of return of notice, if unserved, steps taken for issuing fresh notice and date of completion of service.

(5) **Default of appearance of respondent and consequences:** -Where the respondent, despite effective service of summons or notice on him does not appear on the date fixed for hearing, the Tribunal may proceed to hear the appeal or application or petition exparte and pass final order on merits.

(6) **Filing of objections by respondent:** (a) The respondent, if so directed, shall file objections or counter within 7 days from the date of receipt of notice.

(b) The respondent, if permitted to file objections or counter in any proceeding shall also file three copies thereof after serving copies of the same on the appellant or petitioner or their counsel on record or their authorized representative, as the case may be.

(7) During the hearing of the appeal, after the parties were given sufficient opportunities, if either appellant or the respondent does not appear or represent through their counsel/authorized representatives, then the appeal may be disposed off on merits after hearing the available parties based on the evidence available records.

CHAPTER VIII

HEARING OF APPEAL

10. (1) The appellant shall not, except by leave of the Tribunal, urge, or be heard in support of any grounds of appeal not set forth in the memorandum of appeal, but the Tribunal, in deciding the appeal, shall not confine only to the grounds of appeal set forth in the memorandum:

Provided that the Tribunal shall not rest its decision on any other grounds other than those specified unless the party who may be affected thereby, has been given one opportunity of being heard by the Tribunal.

(2) The Tribunal may, on such terms as it may think fit and at any stage, adjourn the hearing of appeal, but not more than two adjournments shall ordinarily be given.

CHAPTER IX

CHAPTER CALENDER, WORKING HOURS AND SITTING

11. (1) The Calendar of days of working of the Tribunal in a year shall follow that of the Calendar of the Andhra Pradesh High Court.

(2) The sitting of the Tribunal on the days of enquiry would be between 10.30 a.m. and 1.30 p.m. and after lunch session between 2.30 p.m. and 4.30 p.m.

(3) The sitting of the Tribunal shall be at Vijayawada or such other places within its jurisdiction as may be decided by the Chairperson.

(4) The sitting of the Tribunal as and when necessary shall be convened by the Chairperson.

(5) Only during the summer vacation, if need be a vacation bench may be constituted by the Chairperson. Such vacation bench shall be sitting once in a week.

(6) Sitting of vacation Bench and posting of cases: (a) When the Tribunal is closed for vacation, the vacation Bench shall sit on such days as may be specified by the Chairperson

(7) During the vacation, only the matters which are required to be immediately or urgently dealt with, shall be received in the Registry and the Registrar on being satisfied about the urgency, shall order registration and posting of such cases.

(8) The office of the Tribunal shall remain open on all working days from 10.00 A.M. to 5.00 P.M.

(9) The Filing counter of the Registry shall be opened on all working days from 10.00 A.M. to 4.30 P.M. with lunch break between 1.30 P.M. to 2.30 P.M.

(10) In the absence of the Chairperson or vacancy of the Chairperson, the other two Members can conduct the proceedings of the Tribunal. In such cases, amongst the two Members, the Judicial Member will act as Chairperson.

CHAPTER X

MAINTENANCE OF REGISTERS AND RECORDS

12. The following Registers shall be maintained and necessary entries shall be posted on day to day basis by an official as the Registrar may nominate, subject to any order of the Chairperson:-

(1) **Register of Appeals;** (a) An Appeal Register shall be kept by the Bench clerk and it shall be written legibly. The diary in the main file shall contain a concise history of the appeal or application, the substance of the orders passed thereon and it shall contain a complete record of all proceedings and shall be checked by the Registrar and initialed once in a fortnight;

(b) Register of Miscellaneous Applications;

(c) Register of unnumbered Appeals or Application (S.R.Register);

(d) Register of Caveats lodged; and

(e) Register of Review Petition;

(2) **Contents of file :-** The file shall be kept in the following order and it shall be maintained as material record till ordered to be destroyed under the Regulations:-

a) Index;

b) Order Sheet;

(c) Order or Judgment;

(d) Memo of appeal together with any schedule annexed thereto;

(e) Counter or reply or objection, if any;

(f) Copy of documentary evidence as produced in the Authority;

(g) Written arguments, if any;

(3) All records of the Tribunal shall be made digitalized within 2 months from the date of disposal.

13. Destruction of record: (1) Record of the Appellate Tribunal, except material record, shall be ordered to be destroyed by the Registrar after three years from the final conclusion of the proceedings of the Tribunal and if any appeal is filed the same shall be destroyed after 2 years from the date of disposal of such appeals.

(2) All material records shall also be destroyed after 5 years from final conclusion of the proceedings or 2 years from the date of disposal of appeals.

(3) The destruction of such record shall be effected in a manner to render it unfit for reuse.

(4) The destroyed record may be disposed by following prescribed Government procedure and the proceeds shall be credited into the prescribed current account of the Tribunal.

(5) Entry regarding destruction: Entries regarding destruction shall be made in the relevant columns of the destruction register.

CHAPTER XI

DECORUM BEFORE THE TRIBUNAL

14. (1) The party who has engaged a legal practitioner to appear for him before the Tribunal shall not be entitled to be heard in person unless permitted by the Tribunal

(2) Professional dress for the advocate: While appearing before the Tribunal, the Advocate shall wear the same professional dress as prescribed for appearance before the Court. The wearing of gown is optional.

(3) Where other legal representative like that of chartered accountant, etc. and if they have been prescribed a dress for appearing in their professional capacity before any Court, Tribunal or Appellate Tribunal or other such authority, they may at their option, appear in that dress. However they shall appear in suit.

(4) All other persons appearing before the Appellate Tribunal shall be properly dressed;

(5) In the court hall or in any hearing before the Tribunal, no cell phone or any other electronic gadgets shall be used or operated.

CHAPTER XII

DISCOVERY, PRODUCTION AND RETURN OF DOCUMENTS

15. (1) *Suo motu* summoning of documents: Notwithstanding anything contained in these rules, the Tribunal may, suo motu, issue summons/notices for production of public documents or other documents in the custody of any court or public officer or any other party;

(2) **Return of documents:** (a) An application for return of the documents produced shall be numbered. No such application shall be entertained after the destruction of the records.

(b) The Tribunal may, at any time, direct return of documents produced subject to such conditions as it deems fit.

CHAPTER XIII

PRONOUNCEMENT OF ORDERS

16. (1) Order: The final decision of the Tribunal on an appeal before the Tribunal shall be described as Order.

(2) **Pronouncement of Order :** When the orders are reserved, the date for pronouncement of order shall be notified in the cause list which shall be a valid notice of intimation of pronouncement;

(3) Reading of the operative portion of the order in the open court shall be deemed to be pronouncement of the order;

(4) Any order reserved by a Circuit Bench of the Tribunal may also be pronounced at the principal place of sitting of the Bench in one of the aforesaid modes as exigencies of the situation require:

(5) When an order is pronounced, the Bench clerk shall make a note in the order sheet, and make necessary endorsement on the case file regarding the date of such pronouncement, the nature of disposal and the constitution of

the Tribunal pronouncing the order and he shall also make necessary entries in the court diary maintained by him.

(6) Members constituting the Tribunal shall affix their signature in the order of their seniority from right to left;

(7) After communication of the order to the parties or legal representatives, the official concerned shall arrange the records with pagination and prepare the Index sheet. He shall affix initials and then transmit the records to the record room.

(8) Award of costs in the proceedings: (a) The Tribunal may in suitable cases direct appellant or respondent to bear the cost of litigation of the other side, and in case of abuse of process of court, impose exemplary costs on defaulting party.

(b) The cost so awarded by the Tribunal shall be credited into the prescribed current account of the Tribunal.

CHAPTERX IV

CERTIFIED COPY

17. CERTIFIED COPIES OF ORDER:

(1) The Tribunal shall, on such terms and conditions as the Tribunal considers appropriate, provide for supply of certified copies of documents and papers available with the Tribunal to any person, applying in prescribed Form, appended herewith **(FORM)** on payment of fee of Rs.100/- per copy of the order containing up to a maximum of 10 pages and thereafter Rs. 5/- shall be paid for every additional page. Payment shall be directly remitted to the prescribed Bank Account of the Tribunal.

(2) The parties to the appeal are entitled to get one free copy of the order from the Tribunal either by post or in person. Additional copies if required by the parties to the appeal shall be provided on payment of fee as stipulated supra.

(3) The Tribunal shall designate an Officer for ensuring timely response for the issuance of certified copies of documents who shall endeavour to

made ready the certified copies of documents as expeditiously as possible within a period of 30 working days from the date of receipt of copy application and notify the same and deliver the same to the applicant.

CHAPTER XV

ORDERS OF HIGH COURT

18. High Court Appeal Register: (1) A Register shall be maintained in regard to the Appeals filed against the orders of the Tribunal before the High Court and necessary entries therein be promptly made by the Section.

(2) The Register shall be placed for scrutiny before the Chairperson in the first week of every month.

(3) Whenever an interim or final order passed by the High Court in an appeal or other proceeding preferred against a decision of the Tribunal is received, the same shall forthwith be placed before the Chairperson and Members for information and kept in the relevant case file. Immediate attention of the Registrar shall be drawn to the directions requiring compliance.

(4) It shall be the duty of the Registrar to take expeditious steps to comply with the directions of the High Court.

CHAPTER XVI

REMOVAL OF DIFFICULTIES AND ISSUE OF DIRECTIONS

19. Notwithstanding anything contained in the rules, wherever the rules are silent or no provision is made, the Chairperson may issue appropriate directions to remove difficulties and issue such orders or circulars to govern the situation or contingency that may arise in the working of the Tribunal.

CHAPTER XVII

CONFIDENTIALITY

20. (1) The Tribunal shall appraise and determine whether any documents or evidence provided to it by any party and claimed by that party to be of a confidential nature merits being withheld from disclosure to other parties as

being confidential and shall provide brief reasons in writing for arriving at its conclusion.

(2) If the Tribunal is of the view that the claim for confidentiality is justified the Tribunal may direct that the same be not provided to such parties as the Tribunal may deem fit. However, the party claiming the confidentiality shall provide a brief non-confidential summary of the substance of the documents found to be confidential and the import of the same.

(3) Notwithstanding the above, it shall be open to the Tribunal to take into consideration the contents of the documents found to be confidential in arriving at its decision.

(4) The Tribunal may direct any person either to appear to give evidence or to produce any documents or books of accounts and such documents or evidence produced may be ordered to be kept in the safe custody of any one of the officers of the Tribunal.

CHAPTER XVIII

GENERAL POWER TO AMEND/RECTIFY

21. The Tribunal may, at any time and on such terms as to or otherwise, as it may think fit, remove any defect or error apparent on the face of the record in any proceedings before it (including any clerical or arithmetical error in any order passed by the Tribunal), either on an application filed by any one of aggrieved parties or suo motu within 30 days from the date of the order. The Tribunal shall not pass any order on the said application if entertained without giving notice to others. Provided that if the Tribunal desires to make amendments or rectifications in order to determine such issue the Tribunal shall provide an opportunity to the parties affected by such amendment or rectification touching such issue to make representations and submissions with respect to the proposed amendment or rectification.

CHAPTER XIX

COLLECTION OF INFORMATION

22. (1) The Tribunal may issue such directions to any person, Authority or Institution, for the purpose of collection of any information, particulars or documents that the Tribunal considers necessary in connection with the

discharge of its functions under the Act and the Rules.

(2) If any such report or information obtained appears to the Tribunal to be insufficient or inadequate, an officer of the Tribunal may be authorized for further inquiry, report and for furnishing of information.

(3) If the report or information obtained in accordance with Regulation any part thereof is proposed to be relied upon by the Tribunal for forming its opinion or view in any proceedings, the parties to the appeal shall be given a reasonable opportunity for filing objections and making submissions on such report or information.

CHAPTER XX

SAVING OF INHERENT POWER OF THE TRIBUNAL

23. (1) Nothing in the Regulations shall be deemed to limit or otherwise affect the inherent power of the Tribunal to make such orders as may be necessary for meeting the ends of justice or to prevent the abuse of the process of the Tribunal.

(2) Nothing in these Regulations shall bar the Tribunal from adopting in conformity with the provisions of the Act or Rules, a procedure, which is at variance with any of the provisions of these Regulations including summary procedures, if the Tribunal, in view of the special circumstance of a matter or class of matters and for reasons to be recorded in writing, deems it necessary or expedient for so dealing with such a matter or class of matters.

(3) Nothing in the Regulations shall bar the Tribunal to deal with any matter or exercise any power under the Act or Rules for which no regulations have been framed, and the Tribunal may deal with such matters, powers and functions in a manner it thinks fit.

CHAPTER XXI

CONTINUANCE OF PROCEEDINGS AFTER DEATH OF A PARTY

24. (1) Where in a proceeding, any of the parties to the proceeding dies, the proceeding shall be continued and adjudicated with successors-in-interest in case of individual or partnership firm as in the case of an insolvent, the official receiver or assignee, as in the case of a company under liquidation/windingup, the proceeding shall continue with, the executor, administrator, liquidator or other legal representative of the party concerned, as the case may be.

(2) In case of death of any parties to the proceedings, the application for bringing up the successors-in-interest shall be filed within 60 days, if not filed within 60 days, the application shall be treated as abated.

CHAPTER XXII

EXTENSION OR ABRIDGEMENT OF TIME PRESCRIBED:

25. The time prescribed by the Regulations or by order of the Tribunal for doing any act may be extended (whether it has already expired or not) or abridged for sufficient reason by an order of the Tribunal subject to the provisions of the Act and the Rules.

CHAPTER XXIII

ADMINISTRATIVE CHARGES AND STANDARD FEES

26. The Tribunal may, by order, fix standard fees, to be levied on inspection of documents, certified copy of documents, etc.

CHAPTER XXIV**RESTRICTIONS**

(27)(1) Any member who has a direct or indirect pecuniary or other interest in any matter including those relating to his/her immediate family, coming up for consideration in meeting of the Tribunal and he/she shall not take part in any deliberation or decision of the Tribunal, with respect to that matter and shall recuse from the same.

(2) For the purpose of this regulation immediate family shall include wife or husband or son or daughter (whether biological or adopted), parents, brothers or sisters or any person related to any of them by blood or marriage, whether they are dependent on the such member or not.

(3) Any member who is found in violation of the principles laid out in sub-regulation shall be liable to necessary action as per the provisions of the Act and Rules made there under.

(By order of ANDHRA PRADESH Real Estate Appellate Tribunal)

2nd day of November, 2023
Vijayawada - 520010.


CHAIRPERSON
Andhra Pradesh Real Estate Appellate
Tribunal.